

PARTNERSHIP / JOINT VENTURE AGREEMENT

THIS PARTNERSHIP AGREEMENT (the “Agreement”) is made and entered into on this **21st day of December, 2025** (the “Effective Date”),

BY AND BETWEEN:

OMEGA ENTERPRISES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U34567TG2020PTC765432**, having its registered office at **Plot No. 56, HITEC City, Hyderabad – 500081, Telangana, India**, represented herein by its authorized signatory **Mr. Vikram Singh**, Managing Director (hereinafter referred to as “Partner 1”, which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

SIGMA SOLUTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U98765TG2021PTC432109**, having its registered office at **Plot No. 33, Whitefield, Bengaluru – 560066, Karnataka, India**, represented herein by its authorized signatory **Ms. Rhea Kapoor**, Chief Executive Officer (hereinafter referred to as “Partner 2”, which expression shall, unless repugnant to the context, include its successors and permitted assigns).

(Partner 1 and Partner 2 are individually referred to as a “Partner” and collectively as the “Partners”.)

RECITALS

A. The Partners desire to enter into a joint venture for the purpose of **developing and marketing cloud-based software solutions for enterprise clients in India and abroad**.

B. The Partners wish to define their respective rights, responsibilities, contributions, profit-sharing, governance, and exit strategy under this Agreement.

1. FORMATION AND PURPOSE

1.1 The Partners hereby form a **joint venture company (“JV Company”)** to be named **OMEGA-SIGMA TECH PRIVATE LIMITED**, incorporated under the Companies Act, 2013.

1.2 The purpose of the JV Company is to:

- Develop, market, and sell cloud-based software solutions;
- Provide consulting and training services to enterprise clients;
- Undertake research and development in related technologies.

2. CAPITAL CONTRIBUTION AND EQUITY

2.1 Partner 1 shall contribute **INR 50,00,000/- (Rupees Fifty Lakh Only)** in cash and **office equipment valued at INR 10,00,000/-**.

2.2 Partner 2 shall contribute **INR 60,00,000/- (Rupees Sixty Lakh Only)** in cash and **software development assets valued at INR 5,00,000/-**.

2.3 The equity ownership of the JV Company shall be:

- Partner 1: **48%**
 - Partner 2: **52%**
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3. MANAGEMENT AND GOVERNANCE

3.1 The JV Company shall have a **Board of Directors** comprising **2 members from Partner 1** and **2 members from Partner 2**.

3.2 Decisions shall be made by **majority vote** unless otherwise specified in this Agreement.

3.3 Key decisions, including mergers, acquisitions, and dissolution, require **unanimous consent**.

4. PROFIT AND LOSS SHARING

4.1 Profits and losses of the JV Company shall be shared according to **equity percentages**: 48% to Partner 1 and 52% to Partner 2.

4.2 Distributions shall be made **quarterly**, subject to availability of funds and compliance with statutory requirements.

5. ROLES AND RESPONSIBILITIES

5.1 Partner 1 shall oversee:

- Business development and client acquisition;
- Financial management and accounting;
- Administrative and operational support.

5.2 Partner 2 shall oversee:

- Software development and technical operations;
- Research and development;
- Delivery and client support services.

6. INTELLECTUAL PROPERTY

6.1 All intellectual property developed by the JV Company shall belong to the **JV Company**, not the individual Partners.

6.2 Each Partner agrees to assign any pre-existing IP used in the business to the JV Company where applicable.

7. CONFIDENTIALITY

7.1 All proprietary information, trade secrets, client lists, and financial information shall be confidential.

7.2 Confidentiality obligations shall survive **5 years** post-termination or exit.

8. DURATION AND TERMINATION

8.1 The JV Company shall continue for a term of **10 years** unless terminated earlier by mutual agreement.

8.2 A Partner may exit by providing **180 days' written notice**, subject to buyout of its equity at fair market value.

8.3 Termination for cause includes breach of agreement, fraud, or insolvency.

9. DISPUTE RESOLUTION

9.1 Disputes shall first be resolved **amicably through negotiation**.

9.2 If unresolved, disputes shall be referred to **arbitration under the Indian Arbitration and Conciliation Act, 1996**, with venue at **Hyderabad, Telangana**.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of India**.

11. MISCELLANEOUS

11.1 **Entire Agreement:** This Agreement represents the full understanding between the Partners.

11.2 **Amendments:** Must be in writing and signed by both Partners.

11.3 **Force Majeure:** Neither Partner is liable for delays due to causes beyond reasonable control.

11.4 **Severability:** Invalid provisions do not affect the remaining Agreement.

12. SIGNATURES

For Omega Enterprises Pvt Ltd (Partner 1)

Signature: _____

Name: **Mr. Vikram Singh**

Designation: Managing Director

Date: 21 December 2025

For Sigma Solutions Pvt Ltd (Partner 2)

Signature: _____

Name: **Ms. Rhea Kapoor**

Designation: Chief Executive Officer

Date: 21 December 2025

Witnesses:

1. Name: **Mr. Arjun Rao** | Signature: _____ | Address: Hyderabad, Telangana
2. Name: **Ms. Kavya Menon** | Signature: _____ | Address: Bengaluru, Karnataka